

NORMLEX

Sistema de Información sobre Normas Internacionales del Trabajo [Buscar](#) | [Guía del usuario](#) | [Glosario](#)

C138 - Convenio sobre la edad mínima, 1973 (n.º 138)

Mostrar en: [francés](#) - [español](#) - [árabe](#) - [alemán](#) - [neerlandés](#) - [portugués](#) - [ruso](#) - [vietnamita](#) - [chino](#)

Ir al artículo: [1](#) [2](#) [3](#) [4](#) [5](#) [6](#) [7](#) [8](#) [9](#) [10](#) [11](#) [12](#) [13](#) [14](#) [15](#) [16](#) [17](#) [18](#)

Preámbulo

La Conferencia General de la Organización Internacional del Trabajo,

Habiendo sido convocada en Ginebra por el Consejo de Administración de la Oficina Internacional del Trabajo, y habiendo reunido en su Quincuagésimo Octavo Período de Sesiones el 6 de junio de 1973, y

Habiendo decidido adoptar ciertas propuestas con respecto a la edad mínima para la admisión al empleo, que es el cuarto punto del orden del día de la sesión, y

Tomando nota de los términos del Convenio sobre la edad mínima (industria), 1919, el Convenio sobre la edad mínima (mar), 1920, el Convenio sobre la edad mínima (agricultura), 1921, el Convenio sobre la edad mínima (ajustadores y fogoneros), 1921, el Convenio sobre la edad mínima (empleo no industrial), 1932, el Convenio sobre la edad mínima (mar) (revisado), 1936, el Convenio sobre la edad mínima (industria) (revisado), 1937, el Convenio sobre la edad mínima (empleo no industrial) (revisado), 1937, el Convenio sobre la edad mínima (pescadores), 1959, y el Convenio sobre la edad mínima (trabajo subterráneo), 1965, y

Considerando que ha llegado el momento de establecer un instrumento general sobre la materia, que sustituiría gradualmente a los existentes aplicables a sectores económicos limitados, con miras a lograr la abolición total del trabajo infantil, y

Habiendo determinado que estas propuestas adoptarán la forma de un Convenio internacional,

Adopta el veintiséis de junio del año mil novecientos setenta y tres el siguiente Convenio, que podrá citarse como el Convenio sobre la edad mínima, 1973:

Artículo 1

Cada Estado Miembro para el que esté en vigor el presente Convenio se compromete a aplicar una política nacional encaminada a garantizar la abolición efectiva del trabajo infantil y a elevar progresivamente la edad mínima de admisión al empleo o al trabajo hasta un nivel compatible con el pleno desarrollo físico y mental de los jóvenes.

Artículo 2

1. Cada Miembro que ratifique el presente Convenio especificará, en una declaración adjunta a su ratificación, una edad mínima para la admisión al empleo o al trabajo dentro de su territorio y en los medios de transporte matriculados en su territorio; con sujeción a los artículos 4 a 8 del presente Convenio, ninguna persona menor de esa edad podrá ser admitida al empleo o al trabajo en ninguna ocupación.

2. Cada Miembro que haya ratificado el presente Convenio podrá notificar posteriormente al Director General de la Oficina Internacional del Trabajo, mediante nuevas declaraciones, que especifica una edad mínima superior a la especificada anteriormente.

3. La edad mínima especificada de conformidad con el párrafo 1 del presente artículo no será inferior a la edad de finalización de la escolarización obligatoria y, en ningún caso, será inferior a 15 años.

4. No obstante lo dispuesto en el párrafo 3 del presente artículo, un Miembro cuya economía e instalaciones educativas estén insuficientemente desarrolladas podrá, previa consulta con las organizaciones de empleadores y trabajadores interesados, cuando existan, fijar inicialmente una edad mínima de 14 años.

5. Cada Miembro que haya especificado una edad mínima de 14 años de conformidad con lo dispuesto en el párrafo anterior deberá incluir en sus informes sobre la aplicación del presente Convenio, presentados en virtud del artículo 22 de la Constitución de la Organización Internacional del Trabajo, una declaración:

(a) que su razón para hacerlo subsiste; o

b) que renuncia a su derecho a acogerse a las disposiciones en cuestión a partir de una fecha determinada.

Artículo 3

1. La edad mínima para acceder a cualquier tipo de empleo o trabajo que, por su naturaleza o las circunstancias en que se realice, pueda poner en peligro la salud, la seguridad o la moral de los jóvenes, no será inferior a 18 años.

2. Los tipos de empleo o trabajo a los que se aplica el párrafo 1 del presente artículo serán determinados por las leyes o reglamentos nacionales o por la autoridad competente, previa consulta con las organizaciones de empleadores y trabajadores interesadas, cuando existan.

3. No obstante lo dispuesto en el párrafo 1 del presente artículo, las leyes o reglamentos nacionales o la autoridad competente podrán, previa consulta con las organizaciones de empleadores y trabajadores interesadas, cuando existan, autorizar el empleo o el trabajo a partir de los 16 años de edad, siempre que se proteja plenamente la salud, la seguridad y la moral de los jóvenes interesados y que estos hayan recibido la instrucción específica o la formación profesional adecuada en el sector de actividad correspondiente.

Artículo 4

1. In so far as necessary, the competent authority, after consultation with the organisations of employers and workers concerned, where such exist, may exclude from the application of this Convention limited categories of employment or work in respect of which special and substantial problems of application arise.

2. Each Member which ratifies this Convention shall list in its first report on the application of the Convention submitted under article 22 of the Constitution of the International Labour Organisation any categories which may have been excluded in pursuance of paragraph 1 of this Article, giving the reasons for such exclusion, and shall state in subsequent reports the position of its law and practice in respect of the categories excluded and the extent to which effect has been given or is proposed to be given to the Convention in respect of such categories.

3. Employment or work covered by Article 3 of this Convention shall not be excluded from the application of the Convention in pursuance of this Article.

Article 5

1. A Member whose economy and administrative facilities are insufficiently developed may, after consultation with the organisations of employers and workers concerned, where such exist, initially limit the scope of application of this Convention.

2. Each Member which avails itself of the provisions of paragraph 1 of this Article shall specify, in a declaration appended to its ratification, the branches of economic activity or types of undertakings to which it will apply the provisions of the Convention.

3. The provisions of the Convention shall be applicable as a minimum to the following: mining and quarrying; manufacturing; construction; electricity, gas and water; sanitary services; transport, storage and communication; and plantations and other agricultural undertakings mainly producing for commercial purposes, but excluding family and small-scale holdings producing for local consumption and not regularly employing hired workers.

4. Any Member which has limited the scope of application of this Convention in pursuance of this Article--

(a) shall indicate in its reports under Article 22 of the Constitution of the International Labour Organisation the general position as regards the employment or work of young persons and children in the branches of activity which are excluded from

the scope of application of this Convention and any progress which may have been made towards wider application of the provisions of the Convention;

(b) may at any time formally extend the scope of application by a declaration addressed to the Director-General of the International Labour Office.

Article 6

This Convention does not apply to work done by children and young persons in schools for general, vocational or technical education or in other training institutions, or to work done by persons at least 14 years of age in undertakings, where such work is carried out in accordance with conditions prescribed by the competent authority, after consultation with the organisations of employers and workers concerned, where such exist, and is an integral part of--

(a) a course of education or training for which a school or training institution is primarily responsible;

(b) a programme of training mainly or entirely in an undertaking, which programme has been approved by the competent authority; or

(c) a programme of guidance or orientation designed to facilitate the choice of an occupation or of a line of training.

Article 7

1. National laws or regulations may permit the employment or work of persons 13 to 15 years of age on light work which is--

(a) not likely to be harmful to their health or development; and

(b) not such as to prejudice their attendance at school, their participation in vocational orientation or training programmes approved by the competent authority or their capacity to benefit from the instruction received.

2. National laws or regulations may also permit the employment or work of persons who are at least 15 years of age but have not yet completed their compulsory schooling on work which meets the requirements set forth in sub-paragraphs (a) and (b) of paragraph 1 of this Article.

3. The competent authority shall determine the activities in which employment or work may be permitted under paragraphs 1 and 2 of this Article and shall prescribe the number of hours during which and the conditions in which such employment or work may be undertaken.

4. Notwithstanding the provisions of paragraphs 1 and 2 of this Article, a Member which has availed itself of the provisions of paragraph 4 of Article 2 may, for as long as it continues to do so, substitute the ages 12 and 14 for the ages 13 and 15 in paragraph 1 and the age 14 for the age 15 in paragraph 2 of this Article.

Article 8

1. After consultation with the organisations of employers and workers concerned, where such exist, the competent authority may, by permits granted in individual cases, allow exceptions to the prohibition of employment or work provided for in Article 2 of this Convention, for such purposes as participation in artistic performances.

2. Permits so granted shall limit the number of hours during which and prescribe the conditions in which employment or work is allowed.

Article 9

1. All necessary measures, including the provision of appropriate penalties, shall be taken by the competent authority to ensure the effective enforcement of the provisions of this Convention.

2. National laws or regulations or the competent authority shall define the persons responsible for compliance with the provisions giving effect to the Convention.

3. National laws or regulations or the competent authority shall prescribe the registers or other documents which shall be kept and made available by the employer; such registers or documents shall contain the names and ages or dates of birth, duly certified wherever possible, of persons whom he employs or who work for him and who are less than 18 years of age.

Article 10

1. This Convention revises, on the terms set forth in this Article, the Minimum Age (Industry) Convention, 1919, the Minimum Age (Sea) Convention, 1920, the Minimum Age (Agriculture) Convention, 1921, the Minimum Age (Trimmers and Stokers) Convention, 1921, the Minimum Age (Non-Industrial Employment) Convention, 1932, the Minimum Age (Sea) Convention (Revised), 1936, the Minimum Age (Industry) Convention (Revised), 1937, the Minimum Age (Non-Industrial Employment) Convention (Revised), 1937, the Minimum Age (Fishermen) Convention, 1959, and the Minimum Age (Underground Work) Convention, 1965.
2. The coming into force of this Convention shall not close the Minimum Age (Sea) Convention (Revised), 1936, the Minimum Age (Industry) Convention (Revised), 1937, the Minimum Age (Non-Industrial Employment) Convention (Revised), 1937, the Minimum Age (Fishermen) Convention, 1959, or the Minimum Age (Underground Work) Convention, 1965, to further ratification.
3. The Minimum Age (Industry) Convention, 1919, the Minimum Age (Sea) Convention, 1920, the Minimum Age (Agriculture) Convention, 1921, and the Minimum Age (Trimmers and Stokers) Convention, 1921, shall be closed to further ratification when all the parties thereto have consented to such closing by ratification of this Convention or by a declaration communicated to the Director-General of the International Labour Office.
4. When the obligations of this Convention are accepted--
 - (a) by a Member which is a party to the Minimum Age (Industry) Convention (Revised), 1937, and a minimum age of not less than 15 years is specified in pursuance of Article 2 of this Convention, this shall ipso jure involve the immediate denunciation of that Convention,
 - (b) in respect of non-industrial employment as defined in the Minimum Age (Non-Industrial Employment) Convention, 1932, by a Member which is a party to that Convention, this shall ipso jure involve the immediate denunciation of that Convention,
 - (c) in respect of non-industrial employment as defined in the Minimum Age (Non-Industrial Employment) Convention (Revised), 1937, by a Member which is a party to that Convention, and a minimum age of not less than 15 years is specified in pursuance of Article 2 of this Convention, this shall ipso jure involve the immediate denunciation of that Convention,
 - (d) in respect of maritime employment, by a Member which is a party to the Minimum Age (Sea) Convention (Revised), 1936, and a minimum age of not less than 15 years is specified in pursuance of Article 2 of this Convention or the Member specifies that Article 3 of this Convention applies to maritime employment, this shall ipso jure involve the immediate denunciation of that Convention,
 - (e) in respect of employment in maritime fishing, by a Member which is a party to the Minimum Age (Fishermen) Convention, 1959, and a minimum age of not less than 15 years is specified in pursuance of Article 2 of this Convention or the Member specifies that Article 3 of this Convention applies to employment in maritime fishing, this shall ipso jure involve the immediate denunciation of that Convention,
 - (f) by a Member which is a party to the Minimum Age (Underground Work) Convention, 1965, and a minimum age of not less than the age specified in pursuance of that Convention is specified in pursuance of Article 2 of this Convention or the Member specifies that such an age applies to employment underground in mines in virtue of Article 3 of this Convention, this shall ipso jure involve the immediate denunciation of that Convention,

if and when this Convention shall have come into force.

5. Acceptance of the obligations of this Convention--

- (a) shall involve the denunciation of the Minimum Age (Industry) Convention, 1919, in accordance with Article 12 thereof,
- (b) in respect of agriculture shall involve the denunciation of the Minimum Age (Agriculture) Convention, 1921, in accordance with Article 9 thereof,
- (c) in respect of maritime employment shall involve the denunciation of the Minimum Age (Sea) Convention, 1920, in accordance with Article 10 thereof, and of the Minimum Age (Trimmers and Stokers) Convention, 1921, in accordance with Article 12 thereof,

if and when this Convention shall have come into force.

Article 11

The formal ratifications of this Convention shall be communicated to the Director-General of the International Labour Office for registration.

Article 12

1. This Convention shall be binding only upon those Members of the International Labour Organisation whose ratifications have been registered with the Director-General.
2. It shall come into force twelve months after the date on which the ratifications of two Members have been registered with the Director-General.
3. Thereafter, this Convention shall come into force for any Member twelve months after the date on which its ratifications has been registered.

Article 13

1. A Member which has ratified this Convention may denounce it after the expiration of ten years from the date on which the Convention first comes into force, by an act communicated to the Director-General of the International Labour Office for registration. Such denunciation shall not take effect until one year after the date on which it is registered.
2. Each Member which has ratified this Convention and which does not, within the year following the expiration of the period of ten years mentioned in the preceding paragraph, exercise the right of denunciation provided for in this Article, will be bound for another period of ten years and, thereafter, may denounce this Convention at the expiration of each period of ten years under the terms provided for in this Article.

Article 14

1. The Director-General of the International Labour Office shall notify all Members of the International Labour Organisation of the registration of all ratifications and denunciations communicated to him by the Members of the Organisation.
2. When notifying the Members of the Organisation of the registration of the second ratification communicated to him, the Director-General shall draw the attention of the Members of the Organisation to the date upon which the Convention will come into force.

Article 15

The Director-General of the International Labour Office shall communicate to the Secretary-General of the United Nations for registration in accordance with Article 102 of the Charter of the United Nations full particulars of all ratifications and acts of denunciation registered by him in accordance with the provisions of the preceding Articles.

Article 16

At such times as it may consider necessary the Governing Body of the International Labour Office shall present to the General Conference a report on the working of this Convention and shall examine the desirability of placing on the agenda of the Conference the question of its revision in whole or in part.

Article 17

1. Should the Conference adopt a new Convention revising this Convention in whole or in part, then, unless the new Convention otherwise provides:
 - (a) the ratification by a Member of the new revising Convention shall ipso jure involve the immediate denunciation of this Convention, notwithstanding the provisions of Article 13 above, if and when the new revising Convention shall have come into force;
 - (b) as from the date when the new revising Convention comes into force this Convention shall cease to be open to ratification by the Members.
2. This Convention shall in any case remain in force in its actual form and content for those Members which have ratified it but have not ratified the revising Convention.

Article 18

The English and French versions of the text of this Convention are equally authoritative.

See related

Constitution

[Constitution Article 22](#)

Key Information

Convention concerning Minimum Age for Admission to Employment (Entry into force: 19 Jun 1976)

Adoption: Geneva, 58th ILC session (26 Jun 1973)
Status: Up-to-date instrument (Fundamental Convention).
Convention currently open for denunciation: 19 Jun 2026 - 19 Jun 2027

See also

[Ratifications by country](#)
[Submissions to competent authorities by country](#)